NON-DISCLOSURE AGREEMENT

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How to use this template

This is a blank form. Every square-bracketed item, like **[RECEIVING PARTY NAME]**, is a blank for you to complete. Nothing here is filled in for you, and nothing here is a recommendation.

- Fill in each bracketed blank, or remove the bracket and leave the line blank if the item does not apply to your situation.
- Some sections are marked **[OPTIONAL]**. If you do not want a section to be part of your agreement, delete the whole section before anyone signs.
- Where a clause lists choices, pick one and delete the other. Choices appear in two ways: inside a single bracket separated by "or", or as separate **Option A** and **Option B** blocks.
- Section 10 asks you to choose between a one-way and a mutual agreement. That choice affects how the rest of the document reads, so look at Section 10 before you fill in the parties in Section 1.
- Read the finished document from start to finish before signing. Make sure every blank is either filled in or deliberately removed.
- Keep a copy of the signed agreement for each Party.

Whether this template fits your situation, and whether the choices you make are right for you, is a question for you and, if you want help with it, a licensed attorney in your state.

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1. The Parties

This Non-Disclosure Agreement ("Agreement") is entered into on **[EFFECTIVE DATE]** ("Effective Date") by and between:

Disclosing Party: **[DISCLOSING PARTY NAME]**, with a principal address at **[DISCLOSING PARTY ADDRESS]** ("Disclosing Party"), and

Receiving Party: **[RECEIVING PARTY NAME]**, with a principal address at **[RECEIVING PARTY ADDRESS]** ("Receiving Party").

[MUTUAL OPTION — SECTION 10, OPTION B: EACH PARTY IS BOTH A DISCLOSING PARTY AND A RECEIVING PARTY. ENTER BOTH PARTIES' NAMES AND ADDRESSES ABOVE, AND READ THE ROLE LABELS IN THIS AGREEMENT AS APPLYING TO WHICHEVER PARTY IS DISCLOSING OR RECEIVING INFORMATION IN A GIVEN SITUATION.]

The Disclosing Party and the Receiving Party may each be called a "Party" and together the "Parties."

2. Purpose

The Disclosing Party may disclose Confidential Information to the Receiving Party for the following purpose ("Purpose"):

[DESCRIBE THE PURPOSE OF THE DISCLOSURE — for example, the project, discussion, or business relationship the information relates to]

The Receiving Party will use Confidential Information only for the Purpose.

3. Definition of Confidential Information

"Confidential Information" means non-public information that the Disclosing Party gives to the Receiving Party in connection with the Purpose, whether written, oral, electronic, or in any other form, and that is marked confidential or would reasonably be understood to be confidential given the nature of the information and the circumstances of the disclosure.

Confidential Information may include, for example:

[LIST OR DESCRIBE THE KINDS OF INFORMATION THAT MAY BE SHARED — for example, business plans, customer lists, pricing, product designs, source code, financial information, or technical know-how. Delete any that do not apply, and add others.]

[OPTIONAL — STATE WHETHER ORAL OR UNMARKED INFORMATION MUST BE CONFIRMED IN WRITING AS CONFIDENTIAL WITHIN A SET NUMBER OF DAYS TO BE COVERED. If the Parties want that requirement, add it here and state the number of days.]

4. Exclusions from Confidential Information

Confidential Information does not include information that the Receiving Party can show:

- was already known to the Receiving Party without a duty of confidentiality, before it was disclosed under this Agreement;
- is or becomes publicly available through no fault of the Receiving Party or anyone to whom the Receiving Party disclosed it as permitted by this Agreement;
- was rightfully received by the Receiving Party from a third party without a duty of confidentiality, and without breach of any obligation owed to the Disclosing Party; or
- was independently developed by the Receiving Party without using or referring to the Confidential Information.

[OPTIONAL — ADDITIONAL EXCLUSION: If the Parties want another exclusion, add it here and describe it precisely.]

The burden of showing that an exclusion applies is on the Receiving Party.

5. Obligations of the Receiving Party

The Receiving Party will:

- use Confidential Information only for the Purpose, and not for any other purpose;
- protect Confidential Information with at least the same degree of care it uses for its own confidential information of similar importance, and in any event with at least reasonable care;
- not disclose Confidential Information to anyone else, except to its employees, officers, directors, professional advisers, and contractors who need to know it for the Purpose and who are bound by confidentiality obligations at least as protective as this Agreement; and
- not copy Confidential Information except as reasonably necessary for the Purpose.

The Receiving Party is responsible for a breach of this Agreement by anyone to whom it discloses Confidential Information as permitted above.

[OPTIONAL — ANNOUNCEMENTS: If the Parties want to address public statements, press releases, or use of each other's name or logo, add a term here.]

6. Permitted Disclosures Required by Law

If the Receiving Party is required by law, regulation, subpoena, or an order of a court or government authority to disclose Confidential Information, the Receiving Party will, where lawful and reasonably practicable:

- give the Disclosing Party prompt written notice before disclosing, so that the Disclosing Party may seek a protective order or other appropriate remedy;

- reasonably cooperate with the Disclosing Party in any effort to limit the disclosure; and
- disclose only the portion of Confidential Information that it is required to disclose.

[OPTIONAL — STATE WHETHER THE RECEIVING PARTY MUST PROVIDE THE DISCLOSING PARTY WITH A COPY OF THE LEGAL DEMAND, AND WITHIN WHAT TIME PERIOD.]

7. Duration

The obligations in this Agreement begin on the Effective Date and continue for **[NUMBER]** years after **[CHOOSE ONE: the Effective Date / the date this Agreement ends / the date the Purpose is completed]**.

[OPTIONAL — TRADE SECRETS: If the Parties want to state that obligations continue for as long as information remains a trade secret under the law that applies, add that sentence here. Whether and for how long information is treated as a trade secret varies by state and under federal law.]

[OPTIONAL — SURVIVAL OF OTHER TERMS: State which other sections are intended to continue after this Agreement ends.]

8. Return or Destruction of Materials

When this Agreement ends, or earlier if the Disclosing Party asks in writing, the Receiving Party will return or destroy all Confidential Information in its possession, including copies, notes, and summaries.

[OPTIONAL — CERTIFICATION: If the Parties want written confirmation that destruction happened, add a requirement here, and state the time period and who must sign it.]

[OPTIONAL — RETENTION: If the Receiving Party must keep copies for legal, regulatory, audit, or backup purposes, say so here, and state that any retained copies remain subject to this Agreement.]

9. No License and No Warranty

Disclosing Confidential Information does not give the Receiving Party any right, title, interest, or license in or to the Confidential Information, or to any patent, copyright, trademark, trade secret, or other intellectual property of the Disclosing Party. All such rights remain with the Disclosing Party.

Nothing in this Agreement obliges the Disclosing Party to disclose any particular information, to enter into any further agreement, or to buy or sell anything.

Confidential Information is provided "as is." The Disclosing Party makes no representation or warranty, express or implied, about its accuracy or completeness, and is not responsible for any decision the Receiving Party makes based on it.

[OPTIONAL — ADDITIONAL DISCLAIMER: If the Parties want to add a further statement about the information or the relationship, add it here.]

10. One-Way or Mutual

[CHOOSE ONE — delete the option that does not apply. Neither option is recommended over the other; which one fits depends on your situation.]

Option A — One-way (one party discloses). Only the Disclosing Party discloses Confidential Information to the Receiving Party. The Receiving Party's obligations under this Agreement run to the Disclosing Party. The Disclosing Party has no obligations to the Receiving Party under this Agreement about information the Receiving Party discloses, because no such information is covered.

Option B — Mutual (both parties may disclose). Each Party may disclose Confidential Information to the other, and each Party may receive it. Where this Agreement refers to the "Disclosing Party" or the "Receiving Party," those terms apply to each Party depending on which Party is disclosing or receiving information in a given situation. Each Party's obligations under this Agreement run to the other Party, and each Party may use the other Party's Confidential Information only for the Purpose.

[OPTIONAL — IF THE PARTIES WANT DIFFERENT TERMS TO APPLY TO EACH PARTY UNDER THE MUTUAL OPTION, DESCRIBE THAT HERE. Otherwise, leave this line out.]

11. Remedies

[OPTIONAL — REMEDIES: If the Parties want a remedies term, describe it here — for example, whether a Party may ask a court for an order to stop a breach or to require return of materials, what notice or cure period applies, and whether any other remedy should be described. Delete this whole line if the Parties do not want a remedies term.]

What remedies are available for a breach, and what a court may order, varies by state.

[OPTIONAL — LIMITATION: If the Parties want to limit or exclude certain kinds of liability between them, add that term here and describe it precisely.]

12. Governing Law

This Agreement is governed by the laws of the State of **[STATE]**, without regard to its conflict-of-laws rules. The Parties chose this state: **[OPTIONAL — STATE THE REASON, IF THEY WISH TO.]**

[OPTIONAL — VENUE OR DISPUTE RESOLUTION: If the Parties want to choose a court location, an arbitration process, or a mediation step before filing a claim, add it here and describe the process. The rules on which terms are permitted, and whether they apply, vary by state.]

13. General

Entire agreement. This Agreement is the entire agreement between the Parties about its subject matter. It replaces any earlier discussions or agreements, written or oral, about that subject matter, including any earlier confidentiality understanding between the Parties about the Purpose.

Amendments. Any change to this Agreement must be in writing and signed by both Parties.

Severability. If a provision of this Agreement is found not to apply or not to be permitted, the rest of this Agreement stays in effect and the provision will be limited to the smallest extent needed.

No waiver. If a Party does not enforce a provision once, that does not mean the Party gives up the right to enforce it later.

[OPTIONAL — ASSIGNMENT: If the Parties want to address assignment, add a term here.]

[OPTIONAL — COUNTERPARTS AND ELECTRONIC SIGNATURES: If the Parties want separate copies and electronic signatures to be acceptable, add that term here.]

14. Notices

Any notice under this Agreement must be in writing and delivered to the other Party at the address below, by hand, by a delivery service that provides proof of delivery, or by email with confirmation of receipt.

To the Disclosing Party:
Name: **[DISCLOSING PARTY NAME]**
Address: **[DISCLOSING PARTY ADDRESS]**
Email: **[DISCLOSING PARTY EMAIL]**

To the Receiving Party:
Name: **[RECEIVING PARTY NAME]**
Address: **[RECEIVING PARTY ADDRESS]**
Email: **[RECEIVING PARTY EMAIL]**

A Party may change its notice information by giving notice under this section.

15. Signatures

By signing below, each Party acknowledges that it has read this Agreement, has had the chance to ask questions about it, and agrees to its terms.

DISCLOSING PARTY

Signature: **[SIGNATURE]**
Printed name: **[NAME]**
Title (if signing for an entity): **[TITLE]**
Date: **[DATE]**

RECEIVING PARTY

Signature: **[SIGNATURE]**
Printed name: **[NAME]**
Title (if signing for an entity): **[TITLE]**
Date: **[DATE]**

FULL DISCLAIMER

Please read this before you use this document.

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6. **Confidentiality, trade-secret, and related rules vary by state and under federal law.** How confidential information and trade secrets are protected, how long that protection lasts, whether a clause such as this one applies in your situation, and what a court may do about a breach all depend on the facts and on the law that applies to you. We do not tell you which rules apply to you. Consult a professional.
7. **You are responsible for what you fill in and sign.** Every blank in this template is yours to complete. You are responsible for the accuracy of the information you enter, for reading the finished document, and for deciding whether to sign it.
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